

## 25TRCV03476 25TRCV03476

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Case Number: 25TRCV03476 Hearing Date: September 18, 2026 Dept: P

Demurrer to Plaintiff's Complaint

Moving Party: Defendant Manuel Corrales, Jr.

Responding Party: Plaintiff Rockpoint Funding, LLC

### RULING

The court considered the moving papers, opposition, and reply. As Defendant's demurrer is procedurally improper, the court declines to consider Defendant's demurrer.

### PROCEDURAL BACKGROUND

On October 10, 2025, Plaintiff Rockpoint Funding, LLC ("Plaintiff") filed a complaint against Defendant Manuel Corrales, Jr. ("Defendant") and DOES 1 through 20, inclusive, alleging five causes of action for: (1) Breach of Contract; (2) Conversion; (3) Fraud; (4) Common Counts; and (5) Declaratory Judgment.

On November 18, 2025, Defendant filed his first demurrer to Plaintiff's complaint. On February 18, 2026, the court overruled the demurrer as to Plaintiff's first, second, fourth, and fifth causes of action and sustained the demurrer as to Plaintiff's third cause of action for Fraud with leave to amend.

On March 26, 2026, Defendant filed the instant demurrer to Plaintiff's complaint. On September 3, 2026, Plaintiff filed an opposition. On September 11, 2026, Defendant filed a reply.

### FACTUAL BACKGROUND

Plaintiff alleges that Defendant, in his ordinary course of business as an attorney, will request funding advances based on non-recourse purchase agreements. (Complaint, ¶ 10.) Plaintiff alleges that as a result, attorneys enter into written agreements establishing a lien in favor of Plaintiff against the funds recovered by attorneys in the specific client's case. (Complaint, ¶ 10.) Plaintiff alleges that on May 22, 2024, Plaintiff entered into an agreement with Defendant entitled "Nonrecourse Purchase Agreement," regarding a nonrecourse purchase for a litigated matter for Jane Doe. (Complaint, ¶ 20.) Next, Plaintiff alleges that on September 13, 2024, Plaintiff entered into a second agreement with Defendant entitled

“Nonrecourse Purchase Agreement,” regarding a nonrecourse purchase for a litigated matter for Jane Doe. (Complaint, ¶ 22.) Plaintiff alleges that the underlying lawsuit was settled in August, 2025. (Complaint, ¶ 17.) Plaintiff alleges that Defendant has failed to pay the sums due, constituting a material breach of the agreement. (Complaint, ¶¶ 21, 23.)

## LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians’ Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

## DISCUSSION

### Moving Party’s Argument

Defendant attempts to demur to all five of the causes of action in Plaintiff’s complaint on the grounds that the alleged agreement constitutes an illegal fee-sharing agreement between a law office and a non-lawyer such that it is void and unenforceable, and because Defendant’s client did not give written consent to the alleged funding agreement.

### Opposing Party’s Argument

Plaintiff argues that Defendant’s instant demurrer is made on the same grounds as Defendant’s previous demurrer and argues that a motion for reconsideration is required in order to revisit issues previously ruled on by the court. Plaintiff acknowledges that it chose not to amend its causes of action for Fraud.

### Reply Argument

Defendant reiterates his arguments that the parties’ alleged funding agreement is an illegal fee-sharing agreement and is void and unenforceable because the client’s written consent was never obtained. Defendant argues that his instant demurrer is not an improper motion for reconsideration because the demurrer “addresses the illegality of the subject funding agreement which this Court did not rule upon in the first demurrer.” (Reply, p. 5:24-25.)

## Merits of the Motion

### A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Defendant declares that on November 6, 2025, Defendant emailed Plaintiff’s counsel a letter requesting to meet and confer telephonically. (Corrales Decl., ¶ 5.) Defendant declares that on November 12, 2025, Defendant and Plaintiff’s counsel met and conferred over the phone and the parties were unable to reach an agreement. (Corrales Decl., ¶¶ 5-6.)

Therefore, the court finds that the meet and confer requirements have been satisfied.

### B. Procedural Issues

Code of Civil Procedure Section 1008 “essentially forbids trial courts from reconsidering orders previously rendered in the action—either their own or those made by other judges—‘unless made according to this section.’ A motion made in accordance with section 1008 must include reference to new or different facts, circumstances, or law before the earlier order may be reconsidered.” (Bennett v. Suncloud (1997) 56 Cal.App.4th 91, 96; see Code of Civ. Proc. Section 1008.)

In Bennett, the court stated that the court was “foreclosed from rendering a new determination on the viability of those claims” to which a demurrer had previously been overruled “unless some new facts or circumstances were brought to [the court’s] attention.” (Bennett, supra, 56 Cal.App.4th at 96-97.)

Here, Defendant filed his first demurrer to Plaintiff’s complaint on November 18, 2025. The court sustained Defendant’s demurrer to Plaintiff’s third cause of action for Fraud with leave to amend and overruled Defendant’s demurrer to Plaintiff’s first, second, fourth, and fifth causes of action. Plaintiff has not since filed an amended complaint. In ruling on Defendant’s original demurrer, the court expressly acknowledged Defendant’s arguments that “the alleged agreement is an illegal fee-sharing agreement, and thus void” and that “Defendant is not a part of the alleged agreement or contract.” (Minute Order, dated February 18, 2026, p. 4.) In his moving papers, Defendant repeats identical arguments already addressed by the court, being that “the alleged agreement or contract is an illegal fee-sharing agreement...and thus void and unenforceable” and “the client of the attorney did not give written consent to the funding agreement.” (Dem. Notice, p. 1:22-28.) The court also notes that Defendant now attempts to demur to Plaintiff’s Fraud cause of action, to which the court previously sustained Defendant’s original demurrer.

Therefore, the court finds that Defendant is improperly treating the instant demurrer as a motion for reconsideration, which must be made pursuant to Code of Civil Procedure 1008.

As Defendant’s instant demurrer is procedurally improper, the court declines to consider it. Defendant is ordered to file and serve an answer within 30 days.

## CONCLUSION

Based on the foregoing, the court declines to consider Defendant’s demurrer.

Defendant is ordered to file and serve an answer within 30 days.